Fiscal Impact Statement

Legislative Council Staff

Nonpartisan Services for Colorado's Legislature

PROPOSITION 133: PENALTIES FOR HUMAN TRAFFICKING OF A MINOR

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Summary Information

Overview. The measure makes the crime of human trafficking of a minor for sexual servitude a class 1 felony instead of a class 2 felony.

Types of impacts. The measure is projected to affect the following areas:

- State Expenditures
- Local Government

Disclaimer. This fiscal impact statement has been prepared for a statewide ballot measure appearing at the 2026 statewide election. Any appropriations required to implement this measure will be addressed through the annual or supplemental budget process if this measure is approved by voters. For more information about this measure, please see the ballot information booklet.

Table 1
State Fiscal Impacts

Type of Impact	Current Year FY 2026-27	Out Year FY 2041-42	Out Year FY 2042-43
State Revenue	$0	$0	$0
State Expenditures (General Fund)	$0	$180,000	$360,000
Transferred Funds	$0	$0	$0
Change in TABOR Refunds	$0	$0	$0
Change in State FTE	0.0 FTE	0.0 FTE	0.0 FTE

Summary of Measure

Starting January 1, 2027, the measure increases the penalty level for the crime of human trafficking of a minor for sexual servitude from a class 2 felony to a class 1 felony. It clarifies that the statutory penalty of life imprisonment without the possibility of parole for other class 1 felonies applies to this offense. Finally, it includes knowingly trading anything of monetary value to buy or sell sexual activity with a minor as an element of the offense of human trafficking of a minor for sexual servitude.

Comparable Crime Analysis

Legislative Council Staff is required to include certain analysis in the fiscal note for any measure that creates a new crime, or that either reclassifies or creates a new factual basis for an existing crime. This section identifies comparable crimes and discusses assumptions on future conviction rates resulting from the measure.

Prior Conviction Data

This measure reclassifies the existing offense of human trafficking of a minor for sexual servitude, a class 2 felony, as a class 1 felony. It also creates a new factual basis for this existing offense by including knowingly trading anything of monetary value to buy or sell sexual activity with a minor as an element of this offense. From FY 2022-23 to FY 2024-25, eight persons have been convicted and sentenced for this offense, roughly three per year. Of the persons convicted, six were male, one was female, and one did not have a gender identified. Demographically, three were White, four were Black/African American, and one did not have a race identified.

Assumptions

This analysis assumes that there are approximately three offenders per year convicted and sentenced to the Department of Corrections (DOC) for the existing offense. The average Department of Corrections (DOC) length of stay for a class 2 felony is about 15 years with an average parole length of stay of about 3 years once the offender is released from prison, while the average length of stay for a class 1 felony is 40 years, with no parole. Thus, the measure increases the average stay in prison by about 25 years for the assumed 3 offenders sentenced per year.

Although the measure adds an element to the existing offense, this analysis assumes this will not lead to an increase in criminal case filings or convictions. Current law provides for the crime of soliciting a child for prostitution, and so case filings could occur under the offense as modified by the measure or other offenses. Filing criminal charges is at the discretion of district attorneys and also depends on the exact fact pattern of cases. Visit the Fiscal Notes website for more information about criminal justice costs in fiscal notes.

State Expenditures

On net, the measure increases state expenditures in the DOC beginning in about 15 years, or around FY 2041-42, based on current sentencing patterns. At that time, costs will increase to keep about three individuals per year in prison longer for a class 1 felony who would have otherwise been released on parole after serving their sentence for a class 2 felony. In the first year of this impact, costs will increase by about $180,000 after accounting for longer incarceration and the reduced parole population. This estimate is based on the current cost for state-run beds; actual costs in the future will likely be higher.

This cost will compound each year by an additional $180,000 as more offenders remain incarcerated instead of being released. Eventually, costs will reach an equilibrium when the population increase from new offenders serving longer prison sentences is offset by a decrease from life sentences ending.

Table 2 shows the estimated cost of the measure in its first five years of impact.

Table 2
State Expenditures
Prison and Parole Operating Costs

Fiscal Year	Prison ADP Impact	Prison Cost	Parole ADP Impact	Parole Cost	Total Cost
FY 2026-27	0.0	$0	0.0	$0	$0
FY 2041-42	3.0	$204,405	-3.0	-$25,164	$179,241
FY 2042-43	6.0	$408,810	-6.0	-$50,328	$358,482
FY 2043-44	9.0	$613,215	-9.0	-$75,492	$537,723
FY 2044-45	12.0	$817,620	-12.0	-$100,656	$716,964
FY 2045-46	15.0	$1,022,025	-15.0	-$125,820	$896,205
Total 5-year Cost		**$3,066,075**		**($377,460)**	**$2,688,615**

ADP=Average Daily Population. The five-year cost estimate reflects the five-year period beginning in FY 2041-42.

In addition to operating and parole impacts discussed above, if the measure requires capital construction costs for the DOC to house additional inmates, these costs are currently estimated at $412,500 per bed, based on a 2024 survey solicited by DOC on the cost to build a medium security facility.

Lastly, workload in the trial courts in the Judicial Department and the Office of the State Public Defender will minimally increase to try and defend longer cases with enhanced penalties.

Local Government

Workload will minimally increase for county-funded district attorneys to prosecute longer cases with enhanced penalties.

Effective Date

If approved by voters at the 2026 general election, this measure takes effect on January 1, 2027. It applies to offenses committed on or after this date.

State and Local Government Contacts

Corrections

District Attorneys

Judicial